



U.S. Customs and Border Protection

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PUBLIC VERSION

EAPA Case Number 7583

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Re: Notice of Determination as to Evasion

To the Counsels and Representatives of the above-referenced Entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Case Number 7583, U.S. Customs and Border Protection (CBP) has determined that there is substantial evidence that CNC Associates N.Y., Inc. Dba CNC Cabinetry ("CNC" or the Importer)¹ entered merchandise covered by antidumping (AD) and countervailing (CVD) duty orders A-570-106 and C-570-107, respectively, into the customs territory of the United States through evasion.² Substantial

¹ See "Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act," dated November 17, 2020 (the Allegation) at pages 5 and 6, citing "CNC Associates NY corporate information for New Jersey, attached at Exhibit 2." This information also links the Importer and Direct Builders Supply, which share the same address; the president or principal of the importer, Mr. Nathan Indig, is also the principal executive officer of Direct Builders Supply.

² See Allegation, citing Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China: Antidumping Duty Order, 85 FR 22126 (Dep't Commerce, Apr. 21, 2020) and Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China: Countervailing Duty Order, 85 FR 22134

evidence demonstrates that the Importer entered wooden cabinets and vanities and components thereof (“WCV”) from the People’s Republic of China (China) into the United States by transshipping the Chinese-origin WCVs through Malaysia and declared that Bagus Timber Sdn Bhd (Bagus or the Supplier) is the manufacturer. As a result, no AD/CVD, cash deposit, or other security were collected on the merchandise upon entry.

Background

On November 17, 2020, MasterBrand Cabinets, Inc (the Alleger), a domestic producer of WCV, filed an EAPA allegation through counsel claiming that the Importer evaded the AD/CVD orders on WCV from China.³ On January 5, 2021, CBP acknowledged receipt of the properly filed Allegation against the Importer.⁴ TRLED found the information provided in the Allegation reasonably suggested that the Importer entered covered merchandise into the customs territory of the United States through evasion. Subsequently, on January 28, 2021, TRLED initiated an investigation, under EAPA Case Number 7583, against the Importer, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.⁵

On May 5, 2021, after evaluating the information on the record, including information obtained in response to Customs Form-28 questionnaires⁶, after conducting cargo exams⁷ and the information included in the Allegation, CBP issued a “Notice of Initiation of Investigation and Interim Measures for the Importer – EAPA Case 7583” (NOI).⁸ The NOI informed the Importer and the Alleger of the initiation of the investigation and of CBP’s decision to impose interim measures for the Importer based upon a reasonable suspicion of evasion.⁹ The NOI also informed the Importer and the Alleger that the entries covered by the investigation are those entered for consumption, or withdrawn from warehouse for consumption, from January 5, 2020, through the pendency of this investigation.¹⁰

On June 16, 2021, CBP issued Request For Information (RFI) questionnaires to the Importer and Supplier and both responses were received on July 19, 2021.¹¹ In the response to the RFI, the Importer stated that at the start of importing WCV, the Importer’s owner, [name], who manages the overall business and controls the day-to-day operations, including purchasing of WCV, traveled to China and met with several companies. Subsequent to the visit, [name]

(Dep’t Commerce Apr. 21, 2020). Those notices indicate the suspension of liquidation for CVD occurred for entries on or after August 12, 2019, and the suspension of liquidation for AD occurred for entries on or after October 9, 2019, the respective publication dates of the affirmative preliminary determinations in the Department of Commerce investigations.

³ See the Allegation.

⁴ See January 5, 2021, email entitled “EAPA Case 7583 Official Receipt – CNC.”

⁵ See 19 USC 1517(b)(1) and 19 CFR 165.15; see also CBP Memorandum “Initiation of Investigation for EAPA Case Number 7583 – CNC, dated January 28, 2021.

⁶ See CBP Memorandum to the File, dated August 11, 2021 (CBP Memo, Aug.-11) at a attachment 3.

⁷ Id. at a attachment 6.

⁸ See CBP “Notice of Initiation of Investigation and Interim Measures for the Importer – EAPA Case 7583” (NOI), dated May 5, 2021.

⁹ Id.; see also 19 USC 1517(e) and 19 CFR 165.24.

¹⁰ See 19 CFR 165.2; see also 19 CFR 165.2. Entries covered by the POI include entries up to one year prior to the date CBP officially received the allegations, which was January 5, 2020.

¹¹ See CBP emails issuing RFIs questionnaire – the Importer and the Supplier, dated June 16, 2021. See also the Importer’s and the Supplier’s RFIs responses, dated July 19, 2021.

started importing WCV from one of the manufacturers he met during his trip to China.¹² The Importer maintained that before importing WCV from any manufacturer, the Importer would validate the factory operations and its readiness to satisfy the WCV orders. The importer stated:¹³

“when we start doing business with a company, we start by visiting them and their factory. We meet their entire management team and have discussions on capability and volume. We then share drawings of our products. We then discuss pricing. If their pricing is in line with our current vendors, we then send them sample cabinets. They duplicate the sample cabinet and then send to us for review. After approval of the sample cabinet, we give them a “test” PO for 1 container to review process and quality in a production environment. We generate a PO and send to the vendor with quantity and price. They confirm it and give us a scheduled ship date. We then make a down payment on the order. During this time, we have video calls and emails back and forth to clear up manufacturing or quality issues. [shipping instructions

]. After the PO is received and the quality is approved, then more orders are placed with the vendor. We visit the factories every 3-4 months to ensure they are performing and if there are any issues that are lingering, they can be addressed at the time.”¹⁴

Further, the Importer said it was informed that a [subject moved

];

therefore, the Supplier may be a potential new source of WCV.¹⁵

According to the Supplier, its ownership structure has remained the same since it was incorporated in [date], and it is a private limited company involved in the plywood processing business. The Supplier started to produced cabinet products in 2019.¹⁶ According to the Importer, in the fall of 2019, company officials traveled to Malaysia to examine the equipment and confirm the presence of the machines and that the machines were in operation at the Supplier’s facility. The Importer further stated that the Supplier was expected to be in full operation by [date] or [date] and that they could start buying from the Supplier at that time.¹⁷

CBP noted that the Supplier’s address in its bank statement dated January 31, 2020, was [location] compared to a bank statement dated April 1, 2021, which listed the address [location] (1778-1779 address).¹⁸ The bank statement did not show the Supplier’s factory address, which is registered as Lot 8610, Jalan Telok Mengkuang, 42500 Telok Panglima Garang (Lot 8610 address).¹⁹

¹² See the Importer RFI response at 5 and 7.

¹³ *Id* at 5 and 6.

¹⁴ *Id* at 3.

¹⁵ *Id*.

¹⁶ See the Supplier RFI response at 3.

¹⁷ See the Importer RFI Response at 3.

¹⁸ See the Manufacturer RFI response at Exhibit 4.

¹⁹ *Id* at Exhibit 2.

On August 10, 2021, CBP issued a Supplemental RFI (Supp RFI) to the Importer requesting its email communications with the Supplier concerning its meetings, agenda and/or travel itinerary.²⁰ On August 13, 2021, CBP received the Supp RFI response comprised of documents showing the manufacturing process, inspection reports, and the Importer's entry summary documents.²¹ However, the Importer failed to provide any emails and/or itinerary records relating to its visits to the Supplier, claiming that there was no communication via email nor any agenda relating to its travels to the Supplier facility.²²

To further understand the Supplier's production capacity, on September 9, 2021, CBP issued the Second Supplemental RFI (2nd Supp RFI) and on September 16, 2021, asked the Supplier to provide the name and address of the factory in Malaysia from which the Supplier purchased its solid wood parts and cabinet boxes. In its response, the Supplier explained that there was a misunderstanding in the choice of words in its original response to CBP's RFI and maintained that the Supplier did not purchase any solid wood parts and cabinet boxes from other factories in any event. Further, the solid wood parts are produced from wood lumber and the cabinet boxes are produced from plywood in the Supplier's own Malaysian factory after receiving the purchase orders.²³

On August 16, 2021, CBP received the Importer's timely voluntary submission of information reiterating that the Supplier acquired a new factory located at the 1778-1779 address in [date] and moved to this facility in early 2020. However, it was evident that the Lot 8610 address remained active and was used on all CBP official entry documents, because [contract time].²⁴ The Importer maintained that the Allegor's foreign researcher was confused between the Supplier's registered and operational addresses based on the minimal information in the Allegation available for review.²⁵ Finally, the Importer maintained that the Supplier has the capability to produce WCV based on an independent third-party expert retained by the Supplier to analyze and calculate the production capacity of the Supplier to support its narrative.²⁶ According to the Supplier, the conservative approach in the capacity estimation is to calculate the production capacity based on [number] per day to account for the time when the machines are not in use due to loading and unloading of materials and/or work on semifinished products.²⁷

The Allegor provided rebuttal information to the Importer's voluntary submission of the Factual Information stating that as "the largest U.S. manufacturer of cabinets, it has a

²⁰ See Importer Supplemental RFI questionnaire (Importer Supp RFI), dated August 10, 2021. See also, the Importer Supp RFI response, dated August 13, 2021.

²¹ *Id.*

²² See the Importer Supp RFI response at 2.

²³ See the Supplier 2nd Supp RFI questionnaire, dated September 9, 2021. See also, the Supplier 2nd Supp RFI response, dated September 16, 2021.

²⁴ See the Importer submission: "-Voluntary Submission of Factual Information," dated August 16, 2021 (the Aug. 16 Importer NFI) at 3 Part 1; see also, Exhibit VF-5 for the Land and Factory Purchase Agreement: the Supplier's RFI Response at 19.

²⁵ *Id.*

²⁶ *Id.* at Exhibit VF-1. See also, the Supplier RFI response at 21-27 (July 19, 2021).

²⁷ See the Supplier RFI Response at 21-27. See also, the Aug. 16—Importer NFI submission at 1 and 2. CBP notes that the Supplier used an expert to testify to its potential production capacity, rather than demonstrating, through records kept in the normal course of business, how many WCV it actually produced during the period of investigation.

global footprint, so it understands the difficulty in producing such cabinets on a commercial scale.” The Alleger stated it has not found anyone in Malaysia with the capability to make high quality cabinets in significant commercial quantities as needed, discounting the Importer’s third-party expert report.²⁸

On October 6, 2021, CBP informed interested parties of the 60-day extension of time to the determination as to evasion deadline, from November 24, 2021, to January 24, 2022.²⁹ On November 2-3, 2021, Department of Homeland Security (DHS) officials attempted to visit the Supplier’s provided addresses in Malaysia and reported on their findings.³⁰ The Importer provided rebuttal comments to this report on November 22, 2021.³¹

CBP extended the written arguments deadline and interested parties were notified of the new deadline.³² The parties to the investigation timely submitted their written arguments on November 29, 2021.³³ In its written arguments, the Importer argued that the evidence CBP disclosed to the Importer and Supplier contains no evidence to support a reasonable suggestion of evasion. Inversely, the Alleger argued that record evidence contradicts both claims by the Importer and the Supplier that the Supplier legitimately produced all the Importer’s WCV in Malaysia. Further, the Alleger claimed that the Importer’s and the Supplier’s claims are unsubstantiated and unreliable due to the parties’ failure to provide basic information requested by CBP – documentation necessary to substantiate their claims regarding the supply relationship and the Supplier’s operations in Malaysia. Alleger argued that it is unreasonable that the Importer and the Supplier would have no formal or informal records of communications and sales negotiations.³⁴

In responding to the Importer’s written arguments, the Alleger affirmed that the evidence it placed on the record is relevant, reliable, and substantial given the trade statics, the Foreign Market Research, and the affidavit.³⁵ Furthermore, the Alleger argued that the record contradicts the Importer’s claim that no Chinese-origin WCV was imported from the Supplier. Lastly, the Alleger said that because the Importer is the subject of EAPA investigations, not the foreign supplier, the Supplier is not allowed to submit a written argument; therefore, the Importer’s and the Supplier’s due process was not violated.³⁶

The Importer’s rebuttal to the Alleger’s written arguments stated the Allegation contained no credible company-specific evidence against the Importer and the Supplier because country-wide import and export data reflects only the general commercial reality and has no relation to the

²⁸ See the Alleger’s “Rebuttal Factual Information to CNC Voluntary Submission of Factual Information,” dated August 26, 2021 (Alleger RFI Aug-26).

²⁹ See CBP “Notice of Extension of Determination as to Evasion,” dated October 6, 2021.

³⁰ See CBP Memorandum to the File, dated November 10, 2021 (DHS visit memo).

³¹ See CNC Rebuttal Information to TRLED’s November 10, 2021, Memo to File, dated November 22, 2021 (Importer Rebuttal to DHS visit memo).

³² See CBP email title “Extension of Time to Written Arguments Deadline”, dated September 2, 2021, October 21, 2021, October 27, 2021, November 4, 2021, and November 19, 2021, respectively.

³³ See the Importer Written Arguments, dated November 29, 2021, and the Alleger Written Arguments, dated November 29, 2021. *See also*, the Importer “Rebuttal Written Argument,” dated December 14, 2021, and the Alleger’s “Response to Written Arguments,” dated December 14, 2021.

³⁴ *Id.*

³⁵ See the Alleger Response to Written Arguments, dated December 14, 2021.

³⁶ *Id.*

Supplier's shipments to the Importer. The Importer also cautioned TRLED against using undisclosed information on the record (such as the foreign market researcher declaration in the Allegation) against the Importer and the Supplier because due process requires the companies be provided an opportunity to review and address evidence that the agency intends to use against them. Furthermore, the Importer stated that the Google Maps screenshots and videos that it submitted directly contradict the Alleger's claim that the DHS official's visit memo supports the Allegation's argument that the Supplier does not have the physical capacity to produce WCVs on site. The Importer also argued that the Alleger's capacity calculation, based on its own production experience, has little relevance to the Supplier's production.³⁷

On December 15, 2021, CBP placed on the record of this investigation [[name](#)] import and export data for the Supplier, which was bracketed in its entirety and publicly summarized, and allowed parties to comment in accordance with EAPA regulations.³⁸ CBP received a request from the Importer's counsel asking for CBP to fully disclose the data;³⁹ however, CBP did not concede to this request nor did it change the bracketing of the information in this memo.

Analysis

Under 19 USC 1517(c)(1)(A), to reach a determination as to evasion, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion."⁴⁰ Evasion is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise."⁴¹ As discussed below, the record of this investigation, supported by substantial evidence, indicates that covered merchandise entered into the customs territory of the United States through evasion.

Facility Visits

CBP research using Google Earth revealed that images of the addresses claimed by the Supplier do not include any large buildings that resemble a factory building,⁴² contrary to the website photos and photos provided by the Importer and Supplier.⁴³ The street images show an intersection surrounded by residential and retail buildings.⁴⁴ Further, a Google search indicates that the Supplier's address is shared with another active business entity name [[name](#)

³⁷ See the Importer "Rebuttal Written Argument," dated December 14, 2021.

³⁸ See CBP Memorandum to the File, dated December 15, 2021 (Dec. 15th memo).

³⁹ See, the Importer's letter title "EAPA Case No. 7583 – CNC Request to Disclose Proprietary Data Within TRLED's Dec. 15, 2021, Memo In Lieu of Rebuttal Information," dated December 29, 2021.

⁴⁰ Substantial evidence is not defined in the statute. However, the Federal Circuit has stated that substantial evidence "means such relevant evidence as a reasonable mind might accept as adequate to support a conclusion." See *A.L. Patterson, Inc. v. United States*, 585 Fed. Appx. 778, 781-782 (Fed. Cir. 2014) (quoting *Consol. Edison Co. of N.Y. v. NLRB*, 305 U.S. 197, 229 (1938)).

⁴¹ See 19 CFR 165.1; see also 19 USC 1517(a)(5)(A).

⁴² See DHS visit memo.

⁴³ See Attachment 1, photos 1, 2, 3, 4 and 7.

⁴⁴ See DHS visit memo. See also, Attachment 1, photos 5.1-5.5 through 6.1-6.4.

], also an active manufacturer and exporter of WCV to the United States.⁴⁵ To validate the Supplier's production facilities, on November 2-3, 2021, DHS officials conducted a visit to the Supplier's locations that the Importer provided to CBP — the Lot 8610 address; the 1778-1779 address; and [address location]. The results of the visits to these locations confirmed that factory buildings are not present; therefore, on the record there is no proof that an operational factory exists for the Supplier.⁴⁶ According to a [name], the Supplier address is still officially registered under the Lot 8610 address.⁴⁷

On November 10, 2021, CBP placed the DHS visit memo on the record, comprised of the photos of the DHS officials' findings when they visited the factory site locations provided by both the Importer and Supplier in the RFI responses and as listed in the above paragraph.⁴⁸ On November 22, 2021, the Importer and Supplier's counsel submitted 17 videos showing the Supplier's staff driving to factory locations in Malaysia, asserting that the DHS officials visited the wrong locations. The Supplier claimed that Lot 8610 address is a 2.7 Km drive west and not east of the intersection as indicated on the satellite map. It also claimed that the 1778-1779 address is a 21.6 Km drive east from the intersection where the DHS officials visited.⁴⁹ CBP reviewed the Lot 8610 address videos, starting from where the DHS officials stopped at the intersection that they believed was the correct address through to where the Importer and Supplier claimed the Supplier's staff entered the Lot 8610 address. The video of the drive showed the car passing several buildings before stopping and entering the gate allegedly at the Lot 8610 address.⁵⁰ In the video, the Supplier's staff proceeded to walk around the perimeter of an empty building, which appeared to be a warehouse. Also, CBP observed that during the drive to the Lot 8610 location, the street signs and/or address numbers on several buildings along the way are not visible in the video footage.⁵¹ CBP noted that the building showed in the videos is different from those found on the Supplier's website.⁵²

CBP also had the following observations after viewing the videos concerning the Lot 8610 address:

- CBP observed that the building's exterior does not match the Supplier's photo posted on its website and that the interior of the building in the video has no columns and no windows on the left or right side of the building, with two rows of light fixtures on the high ceiling clearance as shown in Attachment 1. *See* photos 1, 7, 11 and 12.⁵³
- Additionally, the video appeared to show interior concrete floors with a consistent finish throughout with no sign of any prolonged heavy equipment in place. The building appeared to have consisted of grey metal covering on all four sides of the walls and roof

⁴⁵ *Id.*

⁴⁶ *Id.*

⁴⁷ *Id.*

⁴⁸ *Id.*

⁴⁹ *See* Importer Rebuttal to DHS visit memo.

⁵⁰ *See* Video of LOT 8610 Footage 01.mp4 through Footage 03 mp4, dated November 22, 2021.

⁵¹ *See* Video title "LOT 8610 Footage 01.mp4", dated November 22, 2021.

⁵² *See* Attachment 1, *See also*, LOT 8610 Footage 02 mp4 and LOT 8610 Footage 03 mp4, November 22, 2021, and the Supplier RFI response Part 4, dated July 19, 2021.

⁵³ *See* LOT 8610 Footage 02 mp4 and LOT 8610 Footage 03 mp4, November 22, 2021. *See also*, the Supplier RFI response Part 4, dated July 19, 2021.

with dark, brown-colored overhead doors. *See* Attachment 1, photos 11 and 12, snipped from the video footage, showing the exterior and interior of a vacant building.⁵⁴

Regarding the video footage of the 1778-1779 address location, the video began with the what its counsel explained was Supplier's staff⁵⁵ driving from an intersection and passing several buildings (again showing no street signs) before stopping at the front gate of a building that had the Supplier's sign on the front gate, as well as a job posting sign for production leader and operator positions.⁵⁶ The Supplier's staff did not enter the building and/or show the interior of the building; therefore, they provided no proof of any active cabinet production. The video footage ended at the front gate, and there is no sign of commercial trucks and/or containers to transport large volumes of WCV or employees in the exterior area beside the security guard.⁵⁷

CBP also noted the several discrepancies when comparing the photos provided in Attachment 1. (1) The building exterior in photo 1 from the Supplier's website and photos 8, 9 and 10 from the RFI responses and photo 7, 11 and 12, snipped from the Supplier's video footage 2 are distinctively different for the Lot 8610 address. Responses on the record indicate the Supplier continued to use the Lot 8610 and not the 1778-1779 address well after a year of moving when filing CBP entry summary documents in the Document Imaging System and other official CBP records.⁵⁸ (2) The Supplier attempted to justify the fact that its website was not updated to reflect the new factory and the address location (*i.e.*, the 1778-1779 address) because company officials said it moved to the new location and still had the Lot 8610 lease. However, the Supplier's explanation does not justify the continued use of and reporting of the incorrect facility at Lot 8610 to CBP.⁵⁹ With the numerous questions asked of the Supplier throughout the investigation, the Supplier had ample opportunity to correctly report its factory's address to CBP and to provide proof that a fully functioning factory exists.

Overall, despite the Importer's and Supplier's attempts to rebut the finding of the DHS visit memo, there is no actual proof on the record of this investigation that the Supplier has a fully operational factory that produces WCV in Malaysia. Furthermore, the Supplier did not provide any explanation for the numerous differences in the various photos of its production facilities that it placed on the record.

Trade Data

In December 2021, CBP received from the [name] import and export data for the Supplier (Dec. 15th memo).⁶⁰ The data showed that the Supplier regularly imported [description and name] throughout the period of investigation (POI).⁶¹ Specifically, the Supplier imported [descriptions] from

⁵⁴ *Id.*

⁵⁵ *See* the Importer Rebuttal Information to TRLED's Nov. 10, 2021, Memo to File, dated November 22, 2021.

⁵⁶ *Id.* *See also*, the Supplier video of 1778-1779 Address Footage 1 mp4 through Footage 15 mp4, dated November 22, 2021.

⁵⁷ *Id.* at Footage 15 mp4.

⁵⁸ *See* CBP Memorandum to the File at Attachment 6, dated August 11, 2021.

⁵⁹ *See* the Importer submission: "-Voluntary Submission of Factual Information", dated August 16, 2021 (Importer NFI Aug- 16) at 3 Part 1, *see also*, Exhibit VF-5 for the Land and Factory Purchase Agreement: The Manufacturer' RFI Response at 19.

⁶⁰ *See* Dec. 15th Memo.

⁶¹ *Id.*

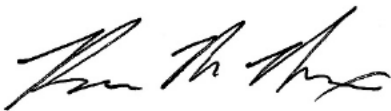
[name] located in China and classified under HTS [number]. This is the same HTS number that the Supplier exported to the United States.⁶² Overall, the Supplier imported [number] the quantity of [description and name] that it exported to the United States.

After reviewing of all evidence on the record—namely the facts that the Supplier purchased such a [actions taken] during the POI, that a large volume of its U.S. sales are to the Importer, and that there is no reliable information on the record that the Supplier actually has an operational WCV production facility in Malaysia—CBP finds that there is substantial evidence on the record that indicates that the Importer entered WCV from China, via transshipment through Malaysia, into the customs territory of the United States through evasion.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In light of CBP's determination that the Importer entered merchandise into the customs territory of the United States through evasion, and pursuant to 19 USC 1517(d) and 19 CFR 165.28, CBP will suspend or continue to suspend the liquidation for the entries imported by the Importer and subject to EAPA Case 7583, until instructed to liquidate. For those entries previously extended and for all future entries subject to EAPA Case 7583, CBP will rate adjust and change those entries to type 03, using the "all others" AD/CVD rates for China unless the Department of Commerce determines a separate rate applies to that entry, and will continue suspension until instructed to liquidate. CBP will also evaluate the Importer's continuous bonds in accordance with CBP's policies and may require single transaction bonds, as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Brian M. Hoxie
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁶² *Id.*

Attachment 1

Photo 1 - website photo

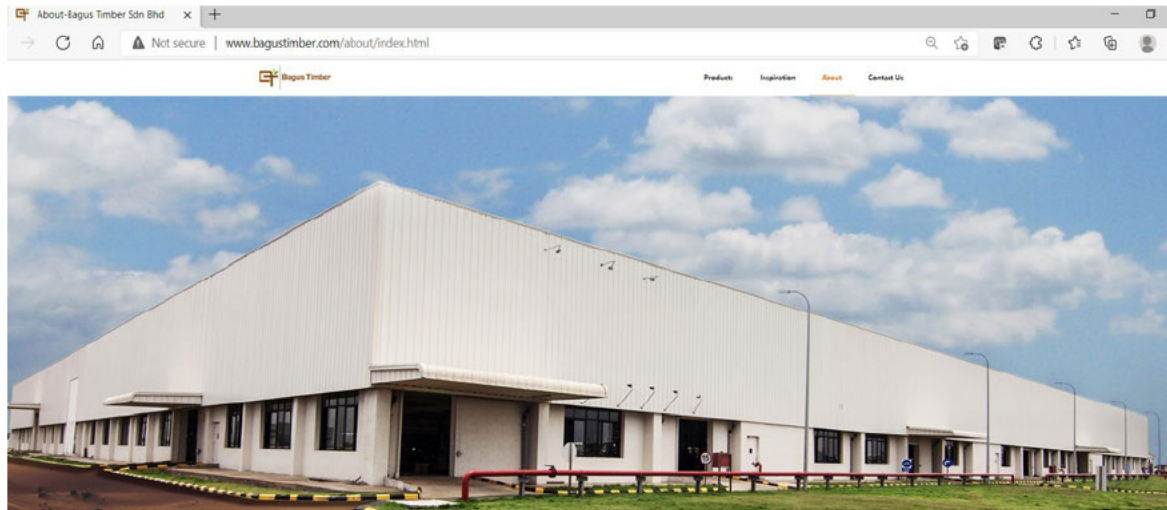


Photo 2: part of factory profile from the Importer's CF-28 response to entry number [number]9424 at 1778-1779 address location.⁶³

photo

⁶³ See CBP Memorandum to the File at attachment 4, Dated August 11, 2021. See also, CEE - CF28 Response Entry Number [no.]9424 - (7583) – revised, dated March 24, 2021.

Photo 3: part of factory profile from the Importer's CF-28 response to entry number [number]9424 at 1778-1779 address location.⁶⁴



photo



Photo 4: part of factory profile from the Importer's CF-28 response to entry number [number]9424 at 1778-1779 address location.⁶⁵



photo



⁶⁴ *Id.*

⁶⁵ *Id.*

Photos 5.1 - 5.5: DHS Official visited Lot 8610 location and did not find any factory in the vicinity. Below photos taken of all four (4) angles at the location:⁶⁶

5.1



5.2



5.3



5.4



5.5



⁶⁶ See DHS visit memo.

Photo 6.1 - 6.4: DHS visited 1778-1779 address location and discovered the busy four-junction road leading towards Johor Bahru. DHS official asked around for the Supplier's factory within the surrounding area with no success. Below photos are taken from all angles of 1778-1779 address:⁶⁷

6.1



6.2



6.3



6.4



⁶⁷ *Id.*

Photo 7: Sniped from video Lot 8610 footage 1



photo



Photo 8: the Supplier RFI response, dated July 19, 2021, at Part 4.



photo



Photo 9: the Supplier RFI response, dated July 19, 2021, at Part 4.



photo



Photo 10: the Supplier RFI response, dated July 19, 2021, at Part 4



photo



Photo 11: Sniped from video lot 8610 footage 2.



photo



Photo 12: Sniped from video lot 8610 footage 2.



photo

